

Brussels, September 21 – The European Data Protection Board (EDPB) and the European Data Protection Supervisor (EDPS) have adopted a joint opinion on the European Commission's proposal for a Regulation on additional procedural rules for the implementation of the General Data Protection Regulation. The aim of this proposal is to ensure the timely completion of investigations and the provision of swift legal remedies for individuals in cross-border cases by harmonizing a range of procedural differences across the EU and simplifying the process of cross-border cooperation. The proposal is based on a list of suggestions that the European Data Protection Board sent to the European Commission in October 2022. The Chair of the European Data Protection Board, Anu Talus, stated: “We welcome the swift response of the Commission to our call for action and are pleased to see that our wishlist has now been turned into a concrete legislative proposal that will complement the General Data Protection Regulation. With this joint opinion, we aim to ensure that the new Regulation works for all parties involved. Given its significant importance, we urge lawmakers to adopt this new Regulation quickly.”

The EDPS Wojciech Wiewiórowski stated: “The Commission's proposal is an encouraging attempt to address some of the challenges identified by experts related to the management of the 'One-Stop-Shop' mechanism. By creating a joint opinion, we hope to further improve future legislation and, in particular, to encourage timely resolution of cross-border cases and ensure respect for the procedural rights of complainants, bearing in mind the inherent limitations of the enforcement model under the General Data Protection Regulation. Furthermore, we call on co-legislators to seize this opportunity to remove practical barriers to effective cooperation between national data protection authorities and the EDPS.”

The European Data Protection Board and the European Data Protection Supervisor welcome the Commission's efforts to harmonize the information that must be provided for a complaint to be considered admissible and further call for the harmonization of admissibility requirements. They also welcome clarifications regarding the right of access to the administrative file. In addition, the Commission's proposal to encourage reaching agreements at an early stage of the cooperation process is crucial for more effective and robust cooperation in enforcement.

The European Data Protection Board and the European Data Protection Supervisor believe that proposals for determining agreements could be further improved by ensuring greater involvement of the relevant supervisory authorities in the process itself, as this would avoid potential disputes at a later stage. Specifically, “preliminary evidence” sent to the parties in the examination procedure and “preliminary positions” for rejecting a complaint should be shared in advance with the relevant supervisory authorities before being submitted to the parties in the examination procedure or the complainant. Furthermore, deadlines should be established, which may be extended in justified circumstances, for certain procedural steps to enable swift and effective enforcement.

The European Data Protection Board and the European Data Protection Supervisor emphasize that this proposal should not unjustifiably limit the ability of the relevant supervisory authorities to submit relevant and reasoned objections to the draft decision, including the scope of the investigation. They also call on co-legislators not to change the current approach to the parties' right to a hearing in the dispute resolution process initiated when data protection authorities fail to reach an agreement in a case. The proposed amendment would require the Chair of the European Data Protection Board to provide the parties under investigation and the complainant with a “statement of reasons.” This appears to be inconsistent with the principles of the “One-Stop-Shop” mechanism; it is also considered unnecessary given the current practice that allows the European Data Protection Board to appropriately take into account the views of the parties and make decisions within the set deadlines.

Regarding the urgent procedure under Article 66(2) of the General Data Protection Regulation, the European Data Protection Board and the European Data Protection Supervisor call on co-legislators to specify how final measures are adopted by the competent data protection authorities and to ensure that they have a broader scope of application than just the area of the data protection authority that submitted the request.

Finally, as the European Data Protection Supervisor highlighted in an initiative sent to the Commission in April 2023, existing practical barriers to effective cooperation between national data protection authorities and the EDPS should be removed. The European Data Protection Board and the European Data Protection Supervisor therefore recommend the introduction of a specific provision for this purpose.

The European Data Protection Board and the European Data Protection Supervisor have adopted a joint position in response to the European Commission's public consultation on the draft report for describing consumer profiling techniques in accordance with Article 15 of the Digital Markets Act. Under the Digital Markets Act, certain gatekeepers will be required to submit such reports to the European Commission annually. The aim of the draft is to determine what gatekeepers should include in independently reviewed descriptions of their profiling techniques. The Commission will forward these descriptions to the European Data Protection Board, and they will serve as the basis for the enforcement measures of data protection authorities.

The European Data Protection Board and the European Data Protection Supervisor are compiling several recommendations to clarify the scope of information that the Commission is seeking, which will be forwarded to the European Data Protection Board. They recommend that gatekeepers provide additional information on the categories of personal data being processed and their sources, the timeline of the processing in question, the legal basis, measures taken regarding the rights of data subjects, and a description of the relevant technical safeguards they implement.